

“found that Aton could not maintain its UCL claims, which were equitable in nature, because it had an adequate remedy at law—its other causes of action for which it sought money damages.” (*Ibid.*). However, the “trial court [also] ruled that Aton's UCL claim fails for reasons independent of concerns about Aton's ability to seek overlapping legal and equitable remedies.” The *Aton* court determined (arguably dicta) that it would be futile to allow any further amendment since amendment would not resolve all the other independent reasons that the UCL claim failed.

Finally, defendant Apple essentially recycles one of its earlier arguments on the third cause of action for violation of the SCA (i.e., that defendant Apple is exempt as a service provider) so a violation of the SCA cannot serve as the basis for Plaintiff's UCL claim. Even so, this last argument by defendant Apple is a demurrer to only a portion of a cause of action which is not proper. (See *Financial Corp. of America v. Wilburn* (1987) 189 Cal.App.3d 764, 778— “[A] defendant cannot demur generally to part of a cause of action;” see also *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682—“A demurrer does not lie to a portion of a cause of action;” *Pointe San Diego Residential Community, L.P. v. Procopio, Cory, Hargreaves & Savitch, LLP* (2011) 195 Cal.App.4th 265, 274—“A demurrer challenges a cause of action and cannot be used to attack a portion of a cause of action.”).

Accordingly, defendant Apple's demurrer to the fifth cause of action of Plaintiff's complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for unfair competition is **OVERRULED**.

#### **IV. CONCLUSION**

Based on the foregoing, the Court **ORDERS** the following: Defendant's demurrer to the first, second, and third causes of action are **SUSTAINED** with ten (10) days' leave to amend for this hearing date. Defendant's demurrer to the fourth and fifth causes of action is **OVERRULED**. The Court will prepare the formal Order.

#### **Calendar Line # 7**

**Case Name** AB Landscaping, Inc. vs Andrew J. Fry as co-trustee of the Andrew Fry and Jin Z. Fry Family Trust et al

**Case No.** 25CV473100

#### **Motion to Strike**

##### **I. BACKGROUND**

This construction dispute arises from a Complaint alleging five causes of actions for breach of contract, foreclosure of mechanics lien, common count, quantum meruit, and payment of penalties that was filed on August 19, 2025 by Plaintiff. Defendants/Cross-Complainants Andrew J. Fry and Jin Z. Fry filed a cross-complaint alleging fourteen causes of actions on October 8, 2025.

On December 10, 2025, Cross-Defendants AB Landscaping, Inc. and Victor Arellano (collectively Cross-Defendants) filed this special motion to strike the Cross-Complaint. The motion is accompanied by proof of electronic service on Cross-Complainants' counsel on December 2, 2025. The motion was filed with a notice of errata on the special motion to strike on December 18, 2025 that was accompanied by a proof of service by electronic service on Cross-Complainants' counsel on that same day.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 31, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

## **II. LEGAL STANDARD**

A moving party must move to strike under this section within 60 days of service of the complaint. (Code of Civ. Proc., §425.16(f)). Code of Civil Procedure section 425.16, permits the Court to strike causes of action arising from an act in furtherance of the defendant's right of free speech or petition, unless the plaintiff establishes that there is a probability that the plaintiff will prevail on the claim. "The anti-SLAPP procedures are designed to shield a defendant's constitutionally protected *conduct* from the undue burden of frivolous litigation." (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 393). "The anti-SLAPP statute does not insulate defendants from *any* liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, *meritless* claims arising from protected activity." (*Id.* at 384).

"Resolution of an anti-SLAPP motion involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success." (*Baral, supra*, 1 Cal.5th at 384). The California Supreme Court has "described this second step as a 'summary-judgment-like procedure.' The court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and made a *prima facie* factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff's evidence as true, and evaluates the defendant's showing only to determine if it defeats the plaintiff's claim as a matter of law. '[C]laims with the requisite minimal merit may proceed.'" (*Id.*, at 384-385).

Protected acts are defined under Code of Civil Procedure section 425.16(e) as the following: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law; (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law; (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest; or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

## **III. ANALYSIS**

Here, Cross-Defendants motion to strike concerns Cross-Complainants' four causes of actions: (1) fifth cause of action, slander of title (invalid mechanics lien); (2) sixth cause of action, abuse of process/malicious prosecution; (3) eighth cause of action, declaratory relief (invalidity of lien; and (4) thirteen cause of action, quiet title, because appellate courts routinely hold the filing of a mechanics' lien implicate a party's right to petition. (Motion, at p. 2).

Cross-Defendants state that the cross-complainants received an April 17, 2025 revised invoice, and terminated the contract on May 23, 2025, with no work occurring in between. (Motion, at p. 8; Exhibit A ¶ 5 & Exhibit 3).

Seventy days after the cross-complainants terminated the contract, AB recorded a mechanics lien seeking to recover \$7,378.03 for the materials and services AB provided for the property on August 1, 2025. (*Id.*, at p 8; Exhibit A ¶ 6 & Exhibit 4). Cross-Defendants assert that the seventy days between the cross-complainants' contract termination and the mechanics lien recordation complies with the ninety-day recordation requirement imposed by Civil Code section 8414. (*Id.*). AB then filed its lawsuit on August 19, 2025, which complies with Civil Code section 8415(a)(8), which AB argues that it lawfully recorded and filed its suit for mechanics lien, and assert that these acts are protected by the right to petition under the anti-SLAPP statutes.

Cross-Defendants meet their *prima facie* burden of showing that the claims arise from a protected activity. (*Healy v. Tuscan Hills Landscape & Recreation Corp.*, (2006) 137 Cal.App.4th 1, 5; *Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 278; Code Civ. Proc., § 425.16, subd. (e)). Moving parties can satisfy this

burden by showing that the statements made before legislative, executive or judicial proceedings, or made in connection with matters being considered in such proceedings, or the statements made in a public forum, or other conduct in furtherance of the exercise of the constitutional rights of petition or free speech, in connection with issues of public interest. (Code Civ. Proc., § 425.16, subd. (e); *Equilon Ent., LLC v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 66).

Cross-Complainants have failed to oppose the motion. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 10, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489). Thus, Cross-Complainants have failed to meet their responsive burden of production to demonstrate a probability of prevailing on the claim. (Code Civ. Proc., § 425.16, subd. (b)(1); *Balzaga v. Fox News Network, LLC* (2009) 173 Cal.App.4th 1325, 1336).

#### **IV. CONCLUSION**

Based on the foregoing, and the unopposed motion, the Court GRANTS Cross-Defendants' special (anti-SLAPP) motion to strike portions of the Cross-Complaint as follows: (1) fifth cause of action, slander of title (invalid mechanics lien); (2) sixth cause of action, abuse of process/malicious prosecution; (3) eighth cause of action, declaratory relief (invalidity of lien; and (4) thirteen cause of action, quiet title, because appellate courts routinely hold the filing of a mechanics' lien implicate a party's right to petition.

The Court will prepare the formal Order.

#### **Calendar Line # 8**

**Case Name** P. Hong vs Justine Papa et al

**Case No.** 25CV476168

#### **Demurrer**

Before the court is defendants' demurrer to plaintiff's complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

#### **I. BACKGROUND**

Plaintiff Prudence Hong ("Hong") was hired by defendant Stanford Health Care ("SHC") on April 17, 2023 as a Licensed Clinical Laboratory Scientist ("CLS"). (Complaint, ¶15). Plaintiff Hong has a disability within the meaning of FEHA, specifically Post-Traumatic Stress Disorder (PTSD) and Major Depressive Disorder (MDD), which substantially limits major life activities. (Complaint, ¶16). Plaintiff Hong had achieved remission of her PTSD and MDD through treatment and was performing her work duties satisfactorily. (Complaint, ¶17).

On or around May 2024, plaintiff Hong was partnered with defendant Joseph Diwas Tatsey ("Tatsey"), a Senior CLS, at the Urinalysis Bench for the first time. (Complaint, ¶¶6 and 18). Defendant Tatsey was expected to provide support and guidance to plaintiff Hong who was newly trained on the bench. (Complaint, ¶18). Hong alleges that instead of providing professional support, defendant Tatsey exhibited unprofessional and threatening behavior toward plaintiff Hong. (Complaint, ¶¶19 – 22).

Plaintiff Hong reported defendant Tatsey's violent and threatening behavior to her supervisor, defendant Justine Papa ("Papa"). (Complaint, ¶23). Defendant Papa did not offer sympathy, did not ask plaintiff Hong to fill out an